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Case Number: 25SMCV00569 Hearing Date: September 18, 2026 Dept: M

CASE NAME: Klein, v. Bavandi, et al.

CASE NO.: 25SMCV00569

MOTION: Petition/Motion to Compel

Arbitration

HEARING DATE: 9/18/2026

LEGAL STANDARD

Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (Moncharsh v. Heily & Blase (1992) 3 Cal.4th 1, 8-9; AT&T Mobility LLC v. Concepcion (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act ("CAA") or the Federal Arbitration Act ("FAA"), courts resolve doubts about an arbitration agreement's scope in favor of arbitration. (Moncharsh, supra, 3 Cal.4th at 9; Comedy Club, Inc. v. Improv West Assocs. (9th Cir. 2009) 553 F.3d 1277, 1284; see also Engalla v. Permanente Med. Grp., Inc. (1997) 15 Cal.4th 951, 971-972 ["California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability [citation] and a requirement that an arbitration agreement must be enforced on the basis of state law standards that apply to contracts in general"].) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.' " (Higgins v. Superior Crout (2006) 140 Cal.App.4th 1238, 1247.)

“Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration if the court determines that an agreement to arbitrate the controversy exists.” (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59, quotations omitted.) Accordingly, “when presented with a petition to compel arbitration, the court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, “a party seeking to enforce an arbitration agreement must show the agreement’s terms are sufficiently definite to enable the court to know what it is to enforce.” (Ibid. [internal citations omitted].) “Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed.” (Ibid.) An arbitration agreement “must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful.” (Civ. Code, § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code, § 1368.) If uncertainty exists, “the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist.” (Civ. Code, § 1654.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.) It would then be plaintiff’s burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (See Ibid.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (Ibid.)

As with any contract, mutual assent or consent is necessary for the formation of a valid arbitration agreement. (Civ. Code, §§ 1550, 1565.) “Consent is not mutual, unless the parties all agree upon the same thing in the same sense.” (Civ. Code, § 1580.) The moving party bears the initial burden of showing the existence of an agreement to arbitrate by a preponderance of the evidence. (Mitri v. Arnel Mgmt. Co. (2007) 157 Cal.App.4th 1164, 1169 [“Because the existence of the agreement is a statutory prerequisite to

granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.”].)

ANALYSIS

Defendants Uber Technologies Inc., Rasier-CA, LLC, and Rasier, LLC, move to compel Plaintiff Kevin Klein's complaint to arbitration. Defendants assert that Plaintiff's instant claims are required to go to arbitration, even though he is not a signatory to any arbitration agreement, because he is an intended third-party beneficiary of an arbitration agreement between Defendants and Lauren Hope Goldberg, and Plaintiff's claims arise from said agreement, such that Plaintiff is equitably estopped from denying the existence of the arbitration clause's application here.

As an initial matter, Defendants demonstrate that Defendants and Goldberg electronically entered into an arbitration agreement. Under the Uniform Electronic Transactions Act, an electronic signature “is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” (Civ. Code, § 1633.9(a).) The effect of such electronic signature “is determined from the context and surrounding circumstances at the time of its creation, execution, or adoption, including the parties' agreement.” (Civ. Code., § 1633.9(b).)

On May 31, 2022, and March 19, 2023, Goldberg was presented with an in-app blocking pop-up screen with the header “We've updated our terms.” It also stated in large type, “We

encourage you to read our Updated Terms in full” and under that message had the phrases “Terms of Use” and “Privacy Notice,” which were displayed underlined and in bright blue text, all of which set the text apart from other text on the screen and indicated a hyperlink. When a user clicked the hyperlinks, the Terms of Use or Privacy Notice, that were published on Uber's website respectively, were displayed. (Kosinski Decl. ¶ 13, Ex. F.) The in-app blocking pop-up screen precluded the use of the Uber app unless or until a user clicked the checkbox on the screen and clicked the large “Confirm”

button at the bottom of the screen. (Id. ¶ 14) The in-app blocking pop-up screen expressly stated that: "By checking the box, I have reviewed and agree to the Terms of Use and acknowledge the Privacy Notice." It also states that: "I am at least 18 years of age." (Id. ¶ 15.) When a user clicks the checkbox and clicks the "Confirm" button a record of

this consent is simultaneously and electronically captured, recorded, maintained, safeguarded, and stored in the ordinary course of Uber's business at the time of the events being recorded. (Id. ¶ 16.) This record is linked to the user's unique identifier associated with the user's email address and/or mobile telephone number used to access the Uber platform. (Id.) These records show Goldenberg expressly consented to the April 4, 2022, and January 17, 2023, Terms on

February May 31, 2022, and March 19, 2023, by clicking the checkbox and tapping "Confirm."

(Kosinski Decl., ¶¶ 17-18, Ex. A.) The terms contain a clear and conspicuous Arbitration

Agreement. (Kosinski Decl., ¶ 17, Ex. G.) For instance, under a large header entitled "2. Arbitration Agreement," the 2023 Agreement states in relevant part:

By agreeing to these Terms, you agree that you are required to resolve any claim that you may

have against Uber on an individual basis in arbitration as set forth in this Arbitration Agreement...

(a) Agreement to Binding
Arbitration Between You and Uber.

(1)

Covered Disputes: Except as expressly provided below in Section 2(b), you and Uber agree that any dispute, claim, or controversy in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof; (ii) your access to or use of the Services at any time; (iii) incidents or accidents resulting in personal injury to you or anyone else that

you allege occurred in connection with your use of the Services (including, but not limited to, your use of the Uber Marketplace Platform or the driver version of the Uber App), regardless whether the dispute, claim, or controversy occurred or accrued before or after the date you agreed to these Terms, and regardless whether you allege that the personal injury was experienced by you or anyone else; and (iv) your relationship with Uber, will be settled by binding individual arbitration between you and Uber, and not in a court of law. This Arbitration Agreement survives after your relationship with Uber ends.

[...]

(5)

Application to Third Parties:

This Arbitration Agreement shall be binding upon, and shall include any claims brought by or against any third parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims arise out of or relate to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties, those claims shall also be subject to this Arbitration Agreement.”

(Kosinski Decl., ¶ 17, Ex. G, § 2(a)(1), (5).) The Goldberg agreements also have unmistakable delegation clauses. (Id., §2(a)(5); see *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68-69 [parties may agree to arbitrate gateway questions of arbitrability such as the enforceability of an arbitration agreement and whether claims are covered by the arbitration agreement]; *First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944 [to establish this exception, it must be shown by clear and unmistakable evidence that the parties intended to delegate the issue to the arbitrator].)

Defendants assert that Plaintiff may be bound as a non-signatory on the basis of equitable estoppel and as a third-party beneficiary of the agreement. (See *Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513 [stating the various ground recognized for enforcement of an agreement against a non-signatory].) A defendant may enforce an arbitration clause on grounds of equitable estoppel when the claims are “dependent upon, or founded in and inextricably intertwined with,” the obligations imposed by the agreement containing the arbitration clause. (Goldman

v. KPMG LLP (2009) 173 Cal.App.4th 209, 217-218.) To determine whether the plaintiff's claim is founded on or intimately connected with the contract, courts must examine the facts of the operative complaint. (Id. at 229-230.) A nonsignatory is also estopped from refusing to comply with an arbitration clause when it receives a "direct benefit" from a contract containing an arbitration clause. (Boucher v. Alliance Title Co., Inc. (2005) 127 Cal.App.4th 262, 269.)

A party may enforce an arbitration agreement under a third-party beneficiary theory when the parties to the agreement agreed, upon the formation of their agreement, to confer the benefits to the nonsignatory. (Ronay Family Limited Partnership v. Tweed (2013) 216 Cal.App.4th 830, 838.) A "third-party beneficiary" may enforce a contract where the contract was intended to benefit it. (Ford Motor Warranty Cases, (2023) 89 Cal. App. 5th 1324, 1337.) To show the contracting parties intended to benefit a third party, the record must show that under the express terms of the contract at issue and any other relevant circumstances under which the contract was made: (1) "the third party would in fact benefit from the contract"; (2) "a motivating purpose of the contracting parties was to provide a benefit to the third party"; and (3) enforcement of the contract "is consistent with the objectives of the contract and the reasonable expectations of the contracting parties." (Goonewardene v. ADP, LLC (2019) 6 Cal.5th 817, 830.)

Plaintiff argues that Defendants have not presented evidence that Goldenberg requested the subject ride, that Klein was the passenger on a ride requested through her account, or that the subject December 16, 2023, trip was requested via Goldenberg's account. Plaintiff notes that the Complaint does not supply any missing link, as it only alleges that Klein, "utilizing the UBER app, ordered an UBER ride." (Compl., ¶ 40.)

Plaintiff is correct that the Kosinski declaration does not expressly tie the subject Uber ride with Goldberg's agreement. However, the Court is still inclined to find an enforceable arbitration agreement exists between Plaintiff and Defendants on the current record. Under the presented, undisputed record, there are only two possibilities, each of which requires the Court to compel arbitration. Critically, Defendants' proffered declaration establishes that to use Uber's platforms, a user (including Plaintiff) must register for an account and agree to the Terms of Use. (Kosinski Decl.,

¶ 6.) A user could not proceed to order a ride without agreeing to the terms of use. (Id., ¶¶ 14-16.) At the time of the alleged Uber ride, the Terms of Use contained the above arbitration/delegation clauses. (Id., ¶¶ 13, 18.) The Complaint concedes that Plaintiff used the Uber app to order the subject ride. (Compl., ¶ 40.) In combination, these facts necessarily establish either: (1) Plaintiff agreed to the Terms of Use directly; or (2) he used someone else's Uber app (Goldberg or otherwise) to order the ride. If Plaintiff used someone else's Uber app to directly hire the ride, then the doctrines of third-party beneficiary and/or equitable estoppel would apply to these facts.

Plaintiff's claims arise from personal injuries sustained during a traffic collision during an Uber ride. Plaintiff alleges that on December 16, 2023, he ordered an Uber ride as a passenger using the Uber app. (Compl., ¶ 40.) Defendant Bavandi was selected by Uber as Plaintiff's driver. (Id., ¶ 41.) Bavandi pulled up to the curb where Plaintiff was waiting, Plaintiff entered defendant Bavandi's vehicle to begin the trip, but before Plaintiff had the opportunity to take his seat and to secure his seatbelt, Bavandi suddenly and without warning accelerated forward and began traveling approximately 30 mph eastbound in lane number 1 on Sunset Blvd. (Id., ¶ 43.) Defendant Kenneth Phelp Rice, a pedestrian walking on Sunset Blvd., suddenly and failing to use due and reasonable care, stepped off the sidewalk and into the roadway of Sunset Blvd. directly in the path of Bavandi's vehicle. (Id., ¶ 44.) Bavandi, suddenly and without warning Plaintiff, slammed on his brakes as he collided with Rice. (Id., ¶ 45.) As a result, Plaintiff was violently jolted and thrown forward and backward due to the sudden forceful collision and abrupt stop. (Id., ¶ 46.) Plaintiff sustained personal injuries due to this collision. (Id., ¶¶ 51-54.) Based upon these allegations, Plaintiff's claim arises out of, or relates to, the use of the Uber's services subject to the Terms of Service, and Plaintiff received a direct benefit from the Terms of Service agreement. Unlike the plaintiff in *Pillar*, Plaintiff received a direct benefit from any agreement between Goldberg (or another individual) and Defendants, since without that agreement, Plaintiff would not have directly hired an Uber ride for his transportation needs. (See *Project AG v. Payward Ventures, Inc.* (2021) 64 Cal.App.5th 671, 680 [where the plaintiff contracted with a third party to convert money in digital currency (e.g., Bitcoin), and that third party used a digital currency exchange subject to certain terms and conditions which included an arbitration clause, and the defendant exchange used inadequate security protocols which allowed digital currency held in the third party's account to be stolen, no direct benefit existed because of the intervening contract meant that any benefits Plaintiff received from the earlier agreement between Defendant and Epiphyte were remote].)

Accordingly,

the motion is GRANTED. The entire action is STAYED

pending the completion of the arbitration. (CCP § 1281.4.) The Court sets a status conference re arbitration for July 13, 2027, at 8:30 a.m.